

BC459696 BC459696

County: los-angeles

Division: Civil Law and Motion

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Case Number: BC459696 Hearing Date: August 25, 2026 Dept: 531

Plaintiff seeks Letters Rogatory from this Court to the Mexican Government to enforce the judgment in the above case, secured after a trial and after the exhaustion of appeals. There is no opposition.

Plaintiffs have spent well over a decade securing a judgment against Defendant. The trials are over, the appeals have been heard, and the judgment remains outstanding. Apparently, Defendant is no longer living in the United States but has gone to Mexico. Plaintiff seeks to enforce their judgment against Defendant through the Letters Rogatory process. The court has reviewed the law and, while mindful of the lengths to which Plaintiffs have gone to attempt to satisfy their judgment, finds that this judgment cannot be enforced in Mexico through Letters Rogatory.

Plaintiff's request that this Court sign the Letter Rogatory is denied.

Neither the Inter-American Convention on Letters Rogatory nor Cal Code Civ Proc § 2027.010 authorizes the Los Angeles Superior Court to issue letters rogatory to enforce a judgment. Plaintiff is incorrect that this Court has the "inherent authority" to issue letters rogatory outside the Convention's or the statute's scopes.

Landstar Global Logistics, Inc. v. Robinson & Robinson, Inc. concluded that the Inter-American Convention on Letters Rogatory does not authorize the issuance of letters rogatory designed to enforce a judgment. See Landstar Glob. Logistics, Inc. v. Robinson & Robinson, Inc., 216 Cal. App. 4th 378, 388 (2013) (finding that the "[u]se of a letter rogatory for enforcement purposes is not authorized by the Convention"). Therefore, Landstar does not justify Plaintiff's request for the Court to sign a Letter Rogatory intended to be used for enforcement purposes.

Plaintiff contends that this Court has the "inherent authority" to issue letters rogatory that are outside the scope of the Convention, which exclusively addresses letters rogatory that have a "formal nature". Cal Code Civ Proc § 2027.010 governs the issuance of letters rogatory by a California superior court. § 2027.010 only discusses letters rogatory in the context of taking depositions and is consistent with Landstar. See Cal Code Civ Proc § 2027.010(d)-(e). The California Supreme Court states that "[W]here the Legislature has provided for certain procedures in one context, courts generally lack inherent authority to apply the procedure in an inapposite context." Estrada v. Royalty Carpet Mills, Inc., 15 Cal. 5th 582, 598 (2024). Therefore, the Los Angeles Superior Court lacks the inherent authority to issue letters rogatory in a non-evidentiary context.

Enforcing judgments from the United States in Mexico has been achieved through an Exequatur procedure under Mexican law, where the judgment creditor seeks recognition of the California judgment in Mexican courts.